

Dispute Chamber

Decision on the merits 145/2023 of October 26, 2023

File number: DOS-2020-00200

Subject: the sending of an email to students and colleagues following the dismissal of a lecturer

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, chair, and Messrs. Jelle Stassijns and Dirk Van Der Kelen, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter GDPR;

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter WOG;

Considering the internal regulations, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

Mr. X, represented by Mr. Lien MICHIELSEN, with an office at Lange Van Ruusbroecstraat 76, 2018 Antwerp; hereinafter "the complainant," and

The respondent:

Y, represented by Mr. Tom PEETERS, with an office at Borsbeeksebrug 36, 2600 Antwerp-Berchem; hereinafter "the respondent."

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I. Facts and procedure

I.1.

Facts

1. The subject of the complaint concerns the sending of emails containing personal data of the complainant to (former) students and colleagues by the respondent, an educational institution, following the dismissal of the complainant by the respondent due to a disciplinary measure.
2. The disciplinary measure followed an incident between the complainant and one of his students during a lesson given by the complainant. The complainant does not deny that he physically struck a student, but claims that this occurred accidentally while making a dismissive gesture and that it did not constitute an intentional act of physical aggression. This all allegedly took place in the aftermath of an oral discussion after the student had secretly attempted to view his grades on the complainant's computer screen.
3. The management of the respondent decided to dismiss the complainant for urgent reasons, and there was communication from the management of the respondent to students and staff who were taught by or collaborated with the complainant. Additionally, there was nearly identical communication regarding the [...] committee. Each of these communications occurred via three emails on March 21 and 22, 2019, stating the dismissal in the following terms: "This is due to physical aggression towards one of the students [...] thorough investigation has shown that this incident makes any further functioning of [name of complainant] as an employee of [respondent] impossible." Based on the documents in the file, it can be stated that at least 195 (former) students received the message and could potentially read it, apart from the number of addressees in the other two messages.
4. After the complainant appealed against the disciplinary measure that led to the dismissal for urgent reasons, it was established by [...] (hereinafter Appeals Board) – which is competent for appeals against disciplinary measures of the management board of the respondent – that the complainant indeed made a mistake, but that the management of the respondent did not conduct sufficiently thorough research in preparation for the decision to dismiss the complainant.
5. The Appeals Board states in this regard, among other things: "[...] although there are about forty

possible witnesses to the incident, [the university management] limited itself [] to interviewing only fellow students who were then proposed by the father of the student involved in the incident. Moreover, the brief reports of the interviews of all those involved are not unambiguous."

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It then decides: "For all these reasons, it declares the dismissal for urgent reasons of the [complainant] unfounded. Given the ambiguity regarding the seriousness of the committed error, the board decides . . . on the preventive suspension of the [complainant], resulting in a disciplinary procedure."

6.

On May 3, 2019, the respondent, according to her synthesis conclusion, informs the members of the aforementioned committee and "the lecturers of the professional bachelor [...] (not the lecturers [...])" of the decision of the Appeals Board.

7.

Subsequently, the administration of the respondent initiates a disciplinary investigation, in which the report ultimately proposes the dismissal. Against this decision, the complainant again appeals. The Appeals Board then establishes its own disciplinary decision in place of that of the administrative board of the respondent, with the disciplinary sanction being the return to the temporary appointment.

8.

Following this temporary appointment, the complainant is subsequently dismissed by the respondent through the dismissal procedure for employees. A notification regarding this dismissal was sent on December 11, 2019, by the respondent – according to her synthesis conclusion – to the complainant's colleagues.

I.2. Procedure

9.

On January 17, 2020, the complaint is declared admissible by the First-Line Service and forwarded to the Dispute Chamber pursuant to Article 62, § 1 in conjunction with Article 92, 1° WOG.

10.

On February 7, 2020, the Dispute Chamber invites the parties to submit conclusions according to the deadlines specified therein. Both parties subsequently submit their conclusions with arguments to the Dispute Chamber. On May 30, 2023, the Dispute Chamber sends a letter to the parties, inviting them ex officio to a hearing based on Article 52 of the Internal Regulations of the Data Protection Authority.

11.

On June 16, 2023, the defending party submits a "supplementary note" to the Dispute Chamber in light of the hearing. This supplementary note mentions a judgment from the Labor Court [...], and attaches it as an annex. The judgment that the respondent attaches states:

"Regarding the complaint that Mr. X submitted to the Data Protection Authority for violation of his right to privacy, the labor court cannot rule on it." Further in the judgment, it states: "In the opinion of the court, this communication [in this case referring to the aforementioned contentious communications] merely reflects the facts, namely that [complainant] was dismissed due to physical aggression towards one of the students."

Furthermore, the supplementary note from the party also states that imposing any measure "is contrary to the reasonable time requirement" in the sense of Article 100 WOG.

12.

On June 23, 2023, a hearing takes place. The parties present their conclusions at this hearing. The parties also delve deeper into the request from the Dispute Chamber – which was communicated to them prior to the hearing – to express their position regarding the legality of any processing (in the sense of Article 6.1. GDPR), as well as on the application of the principle of minimal data processing to any processing (in the sense of Article 5.1.c. GDPR).

13.

The minutes of the hearing are subsequently sent to the parties on June 28, 2023; in accordance with Article 54 of the Internal Regulations of the GBA, the parties are given the opportunity to add comments to the minutes. Both parties provide such comments, which are fully added to the file and of which the Dispute Chamber has taken note in the context of the deliberations preceding the present decision.

II. Reasoning

II.1. Admissibility of the complaint and jurisdiction of the Data Protection Authority

14. In her synthesis conclusion, the defending party argues that the contentious processing, namely the sending of an email to students and staff regarding the dismissal of the complainant, does not constitute processing in the sense of the GDPR. The defending party states in this regard:

“In this case, there is no processing of personal data as defined in Article 4, 1) and 2) of the GDPR [...] There is also no automatic processing of data or manual processing of data intended to be part of a file as referred to in Article 2 of the GDPR. It concerns merely an internal communication via email . . .”

15. The reasoning of the defending party cannot be followed and would contradict the spirit and letter of the relevant regulations. The reasoning would imply that as soon as a document containing personal data is designated as “internal,”

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the processing of such personal data would escape the protection of the GDPR, including the oversight by the competent authorities (in this case, the GBA).

16. The Dispute Chamber holds that there is no doubt that the GDPR is applicable and that the GBA is competent to take enforcement action in accordance with Article 4 WOG.

17. Firstly, it is clear that the content of the disputed email messages constitutes personal data within the meaning of Article 4.1. GDPR. As the complainant rightly points out in his conclusions, this concerns information relating to him as an identified person. More specifically, the email contains information about the complainant, namely the fact that he is being dismissed from the educational institution where he teaches, as well as the reason for that dismissal (“physical aggression”). The complainant can also undoubtedly be regarded as an identified person, as he is explicitly mentioned (by name) in the disputed communications.

18. Furthermore, there is also no doubt that the mention of certain data in the disputed email messages involves processing within the meaning of Article 4.2. GDPR, as the processing is carried out through an automated procedure. The disputed email messages were created at the initiative of the respondent, who entered and structured the personal data in a certain way – whereby the respondent chose which data to specifically mention – after which the message was addressed to a certain number of persons so that the information was disclosed by sending an email (i.e., an automated procedure).

19. In this sense, it is clear that within the definitions provided by the GDPR, the facts from the complaint clearly fall under the material scope of the GDPR (Article 2.1. GDPR). None of the 4 exceptions under Article 2.2. GDPR are applicable here. Since the respondent does not explicitly base her argument on this provision, it is not necessary to address these exceptions in the decision.

20. For all the aforementioned reasons, it is clear that the email messages that formed the basis of the complaint in this file constitute personal data processing that falls under the material scope of the GDPR (Art. 2 GDPR), with the definitions used therein (specifically those in Article 4, paragraphs 1 and 2 GDPR) undeniably applicable to the facts.

II.2. Additional Document for the Hearing, Addition to the Administrative File, and Consequences for the Procedure

21. The document submitted by the respondent at the hearing, which includes the aforementioned judgment of the labor court, is accepted and added to the file by the Dispute Chamber as it can be considered evidently relevant in the context of safeguarding the rights and freedoms of the parties – including the defense rights of the respondent. The complainant was able to review the document prior to the hearing and was given the opportunity to express himself about it during the hearing. The admissibility of the document is – as evidenced by the minutes of the hearing – not contested by either party.

22. The claim that the grievances in the complaint would have become moot due to the aforementioned judgment of the labor court – as the respondent argues – cannot be followed by the Dispute Chamber for several reasons.

23. Firstly, the complainant's claim in the proceedings before the labor court was dismissed, meaning that there can be no question of double jeopardy. Secondly, it should be emphasized that the

procedure before the Dispute Chamber is an – albeit sui generis – administrative procedure, which clearly differs from any civil or criminal procedure. While it is certainly true that the ne bis in idem principle should apply in that context, it is important to underscore that the Dispute Chamber makes specialized rulings regarding facts that specifically relate to data protection, and does not holistically adjudicate the civil claims of the parties.

24. The judgment of the labor court also explicitly acknowledges that that court cannot rule on the ongoing procedure at “the Data Protection Authority.” The judgment only addresses the potential damage that the communication may or may not have caused, but does not address the specific data protection law aspects. Furthermore, the judgment does not refer to any legal provision in this regard, making it difficult to argue that there has already been a concrete assessment of data protection law aspects. For each of these reasons, it cannot be accepted that the handling of this complaint file would be halted by the Dispute Chamber, given the specific circumstances.

II.3. The Legitimacy of the Processing and the Principles Regarding the Processing of Personal Data: Complainant's Position:

25. The complainant argues that various principles regarding the protection of personal data (Article 5 GDPR) have been violated. The complainant states in this regard:

“There is no question of lawful, proper, and transparent processing of the data.

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The [respondent] does not declare for which specific, explicitly defined, and justified purposes the data were processed as they were processed.

There is absolutely no question of minimal data processing; on the contrary. Minimal data processing occurs when it is adequate, relevant, and limited to what is necessary for the purposes for which it is processed. A minimal data processing would have been a communication to colleagues and students—no former students—that the [complainant] would no longer be working and was possibly replaced by person X. Communicating, without a sufficiently objective investigation, regarding physical aggression towards one of the students is by no means minimal data processing.

The data must be accurate and up to date. According to the decision of the appeals board of April 23, 2019, insufficient investigation was conducted into the nature of the facts; moreover, the decision of the [respondent] was declared unfounded. Therefore, both on March 21 and after the decision of the board, there was a violation of the processing of personal data. The [respondent] prematurely and unnecessarily circulated the message containing information about the physical aggression.

The respondent also states in her conclusions that she “never went into detail” regarding the reasons for the dismissal in the emails to the students and colleagues of the complainant. On the one hand, this statement is incorrect, as there was indeed mention of the facts of physical aggression. On the other hand, that wording is so general that it can lead to additional speculation about the scope of this (alleged) aggression by the complainant; the use of such wording does not demonstrate a proper view of personal data processing on the part of the respondent.

2 Reply conclusion of the complainant.

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Considering the fact that there is currently an increased demand for transparency towards management, [respondent] therefore ensured a general and caring communication to colleagues and students. [Respondent] attempted to comply with her duty to inform and sought to eliminate the culture of silence that often prevails among management towards their employees.

Furthermore, there is no document indicating that the respondent would use the complainant's data for any other purpose [...]

Moreover, the respondent adheres to the principle of minimal data processing by processing only the name of the complainant in light of the intended purpose (Article 5.1.c of the GDPR) [...] The respondent has moreover never gone into detail.

Furthermore, this internal communication was only forwarded to colleagues... and to his students... The information was not sent to private email addresses, but only to professional email addresses. Regarding the complainant's claim that the information was sent to former students, it is somewhat

true that a few students were no longer being taught by [complainant] at that time, but these were only students who had already graduated in the first semester. If students graduate in the first semester, their access to certain internal websites and the mailbox... is only canceled in October of the following academic year [...]

The processing is moreover lawful [...]

The dismissal for urgent reasons has raised many questions and concerns among students and colleagues [...] Moreover, only the relevant and proportional information was processed. As already outlined above, only the name of the complainant and the fact that he was dismissed for urgent reasons due to physical aggression were mentioned. The principle of proportionality has therefore been complied with."

Assessment of the Dispute Resolution Chamber

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27. The Dispute Chamber is not a (civil) court but is part of an administrative body. According to its assigned powers, the Dispute Chamber is responsible for assessing the facts in the file against the data protection legal framework, applying certain policy considerations – such as regarding the appropriateness of addressing a complaint. In other words, it is not within the remit of the Dispute Chamber to make rulings on aspects and means presented by the parties that go beyond the relevant data protection assessment.

28. In this case, the relevant disputed facts for the assessment by the Dispute Chamber concern three emails sent under the responsibility of the respondent. The complainant cites various elements that he believes individually constitute violations of the principles regarding the processing of personal data. The Dispute Chamber considers that there is one action in each of the three communications, whereby the manner in which the personal data is processed constitutes a potential violation of one provision. Due to the specificity of Article 6(1) GDPR, it is necessary to examine solely the legality of the processing – but in light of the principles contained in Article 5 GDPR.

29. The Dispute Chamber limits its assessment of the legality of the processing to the mention of "dismissal for urgent reasons" and the use of the wording "physical aggression" in three emails from the respondent dated March 21, 2019, and March 22, 2019, respectively, while also taking into account the number of recipients and the relevance of addressing all these recipients.

30. Below is an excerpt from the communication of the email dated March 22, 2019, to "195 students and former students" (thus the conclusions of the complainant, not disputed by the respondent):
"Dear student...

Yesterday, the management proceeded to the dismissal for urgent reasons of [first and last name of complainant], [...] -teacher. This follows an incident of physical aggression towards one of the students during the class [...] last Monday. A thorough investigation after Monday has shown that the further functioning of Mr. [last name of complainant] as a teacher at [respondent] is no longer possible.

We understand that this message and this decision may raise many questions and concerns among you and other students [...]"

The message subsequently adds information regarding contact points and persons following the incident.

31. In the present case, neither party claims that there is a lawful processing based on the complainant's consent to process his personal data (Article 6.1.a. GDPR), nor that there is an agreement between the parties on which the processing of personal data would be based (Article 6.1.b. GDPR). Furthermore, it is not argued anywhere – particularly by the respondent – that the disputed processing would be legally required (Article 6.1.c. GDPR) or that this processing is necessary for the vital interests of anyone (Article 6.1.d. GDPR) or necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the respondent (Article 6.1.e. GDPR).

32. The respondent bases the legality of the aforementioned processing on Article 6.1.f. GDPR. Since the respondent, as the data controller, refers to this legal basis, it is up to the Dispute Chamber to assess whether all conditions of this legal provision are fulfilled to speak of lawful processing.

33. According to the case law of the Court of Justice, the second respondent, as the data controller, must therefore demonstrate that:

- 1) the interests they pursue with the processing can be recognized as justified (the "purpose test");
- 2) the intended processing is necessary for the realization of those interests (the "necessity test"); and
- 3) the balancing of those interests against the interests, fundamental freedoms, and rights of the data subjects weighs in favor of the data controllers or a third party (the "balancing test").

6 Paragraph 12 et seq. of the respondent's synthesis conclusion.

7 Judgment of the CJEU of May 4, 2017, Rigas satiksme, C-13/16, EU:C:2017:336, paragraph 28.

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a) Purpose Test

34. In the view of the Disputes Chamber, personnel-related communications can indeed be justified – in the context of dismissal or prolonged absence. In this sense, a communication regarding a dismissal – including the reason for that dismissal – can be justified for a staff member or lecturer.

35. In this regard, the respondent rightly points out that there is a clear societal demand for transparency regarding measures taken by management concerning staff. Besides communication to colleagues of those involved, the situation also demonstrates that communications to students can pursue such a legitimate objective.

36. Communicating about a dismissal, and the reason for that dismissal, pursues a legitimate goal in itself. There is no indication that the communications were sent for other purposes – such as intentionally harming the complainant. The Disputes Chamber explicitly does not follow the reasoning of the complainant that a communication at the time of the facts would be “premature.” Since the dismissal occurred for urgent reasons, regardless of the justifiability of that dismissal, there arose an immediate and legitimate need to communicate about that dismissal to students and colleagues of the complainant.

b) Necessity Test

37. For the execution of this test, a distinction must first be made at a general level between two types of processing that must be distilled from the disputed facts and the three emails. First, the necessity of informing former students is discussed, via the disputed email dated March 22, 2019. Second, the necessity of communications to colleagues, members of the aforementioned committee, and “current” students of the complainant (at the time of the facts) is discussed, as well as the manner in which the personal data of the complainant were used in the two communications on March 21 and 22, 2019.

b.1. Communication to former students:

38. Regarding the communication to former students, it can be briefly stated that it can hardly be called “necessary” to inform these individuals about the dismissal – let alone the reason for the dismissal – of the complainant. The defense on this point by the respondent, claiming that it would be difficult or impossible to work with an updated list of students, cannot be upheld.

39. The Disputes Chamber rules that based on the accountability obligation under the GDPR of a large organization such as that of the respondent, it can be expected that it takes the technical and organizational measures to keep its lists – in this case, the accounts and associated mailboxes – of students continuously up to date, and at least more frequently than once per academic year. This applies a fortiori when such “student lists” are used for communications such as those on March 22, 2019, by the respondent, where personal data of the complainant were used and processed in a sensitive manner.

40. Since the respondent explicitly acknowledges in its conclusions that some of the addressees “no longer had classes with [the complainant],” it clearly follows that the disputed communications regarding those addressees should be considered as not necessary. By failing to meet the necessity test regarding the communication to former students on March 22, 2019, a violation of Article 6.1.f. GDPR can already be established for this processing on this point.

b.2. Communication to “current” students and colleagues:

41. As stated above, informing students and colleagues about a dismissal constitutes a real and

societal need that can be deemed relevant and legitimate according to the Disputes Chamber. However, the Disputes Chamber must establish that the relevant communications, and more specifically the references to “physical aggression” – in light of the general principle of minimal data processing as per Article 5.1.c. GDPR – were not necessary.

42. More specifically, although it may be necessary for the respondent to communicate “transparently” about the dismissal, the Disputes Chamber does not find it necessary to mention “physical aggression,” especially since the communication concerns a dismissal. The students, colleagues, and other individuals to whom the communication is made have no current need to know that reason. The suggestion that gossip or distrust might arise from not communicating the reason for the dismissal is not, in itself, the (societal, let alone legal) responsibility of the respondent. In no case are there circumstances that the respondent has presented in the current procedure that would in any way justify the effective and direct necessity of disclosing this personal data.

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43. Now that the communication to both colleagues and “current” students at the time of the events can be deemed unnecessary for the realization of the interests of the respondent, the Disputes Chamber finds that the necessity test is not met and therefore the conditions of Article 6.1.f. GDPR are not satisfied for the disputed facts through the three email messages sent by the respondent. For that reason alone, the processing on March 21 and 22, 2019 constitutes a violation of that provision. This violation is the result of mentioning the reason “physical aggression.”

44. Moreover, the Disputes Chamber notes that the fact that such communications occur “internally” and are directed to email addresses associated with the institution is not relevant for the assessment of necessity. The fact that certain events occurred in a work-related context, or that communications were sent on an “internal platform,” is not pertinent to that assessment.⁹

c) Balancing test

45. Taking into account various elements, the Disputes Chamber concludes that the rights and freedoms of the complainant were not adequately considered by the respondent when sending the disputed communications. Each of these elements in itself demonstrates a violation of the balancing test, leading to a breach of Article 6.1.f. GDPR, on which the disputed processes would be based.

46. Firstly, the Disputes Chamber notes that the communications refer to a “thorough investigation,” while the ruling of the Appeals Board dated April 23, 2019 states that the management of the respondent would have presented “insufficiently objectively substantiated elements.” The fact that these communications—albeit a posteriori by the Appeals Board—can be labeled as at least partially incorrect, in itself shows that the rights and freedoms of the complainant were excessively harmed.¹⁰ This is also evident from the ruling of the court that awarded compensation for the manner in which the complainant's dismissal was handled by the respondent. This aspect alone demonstrates that the rights and freedoms of the complainant were excessively harmed by the communications in light of the balancing test, where the respondent unjustly associates the dismissal due to “physical aggression” at least partially with a “thorough investigation.”

47. Secondly, the Disputes Chamber finds that the initial communication also does not mention that the complainant can appeal against the decision of the management of the respondent, and the considerations associated with it that the management took into account to proceed with the dismissal. When the respondent refers to a dismissal after a “thorough investigation” that established “physical aggression,” the respondent could at least have mentioned that an appeal was still possible to a professional body. The fact that this appeal possibility was not mentioned in the disputed communications—while these communications refer to a dismissal for urgent reasons after a thorough investigation that indicates physical aggression as the reason for the dismissal—demonstrates in itself that the rights and freedoms of the complainant were excessively harmed by the communications in light of the balancing test.

48. For both elements separately, the Disputes Chamber concludes that the balancing test has not been respected. Thus, for each of those two elements, by violating the balancing test, the breach of Article 6.1.f. GDPR is established for the disputed processes in the three email messages.

II.4. Sanctioning

49. Now that the Disputes Chamber has established that the three emails containing communications to students, former students, colleagues, and members of the aforementioned committee involve personal data processing that constitutes a breach of Article 6.1. GDPR, it is appropriate to take corrective measures against the respondent.

50. In the context of effective legal protection under Article 47 of the Charter of the European Union, and the effective enforcement that the legislator seeks with the GDPR, it is also appropriate to admonish the respondent in this regard.

51. For that reason, the Disputes Chamber finds it appropriate to reprimand the respondent for the mention in the disputed communications that the dismissal occurred for reasons of physical aggression, as well as for addressing former students, for whom there was certainly no necessity to be informed of the dismissal, let alone in such a manner.

III. Publication of the decision

52. Given the importance of transparency regarding the decision-making of the Disputes Chamber, this decision will be published on the website of the Data Protection Authority. However, it is not necessary for the identification details of the parties to be disclosed directly for this purpose.

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Pursuant to Article 108, § 1 of the WOG, an appeal against this decision may be lodged with the Market Court (Court of Appeal Brussels) within a period of thirty days from the notification, with the Data Protection Authority as the defendant. Such an appeal may be filed by means of a statement of opposition that must contain the details listed in Article 1034ter of the Judicial Code. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Ger.W., or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

(get). Hielke HIJMANS

Chairman of the Disputes Chamber

11 The statement must include, under penalty of nullity:

1° the day, month, and year;

2° the name, first name, residence of the applicant and, if applicable, their capacity and their national register or business number;

3° the name, first name, residence and, if applicable, the capacity of the person to be summoned;

4° the subject matter and a brief summary of the grounds of the claim;

5° the judge before whom the claim is brought;

6° the signature of the applicant or their lawyer.

12 The statement with its annex is to be sent, in as many copies as there are parties involved, by registered mail to the clerk of the court or filed at the registry.

FOR THESE REASONS,

the Disputes Chamber of the Data Protection Authority decides, after deliberation, to:

- reprimand the defendant pursuant to Article 100, §1, 5° of the WOG.